

any point.

And even if some internal confusion led to the failure to forward court notices to the proper handling office of the firm, Plaintiff's attorneys give no information to establish it was the result of some excusable mistake, inadvertence, surprise or neglect, rather than simple inexcusable neglect. At best Plaintiff's MPA states "When Plaintiff did receive notice of the July 7, 2025 hearing, Plaintiff's counsel in Arizona inadvertently failed to notify Plaintiff's counsel in California of the scheduled hearing." See MPA, p. 4, lns. 14-16. Importantly, however, that statement fails to cite any supporting evidence. Likely because that statement is not made in the Supporting Declaration. See Supporting Declaration, pp. 2-3, ¶¶7-8.

The scant evidence proffered as relates to the receipt of the March 27, 2025 Order and June 16, 2025 Order fails to demonstrate that Plaintiff's and its attorneys' repeated failures appear and the resulting dismissal were the result of excusable mistake, inadvertence, surprise or neglect.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Dismissal is DENIED.
2. The Court shall enter the order after hearing.

4. 9:00 AM CASE NUMBER: L24-10643
CASE NAME: WELLS FARGO BANK, N.A. VS. JASMEEN GILL
HEARING ON SUMMARY MOTION MOTION FOR SUMMARY JUDGMENT FILED BY PLN ON 8/7/25
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Summary Judgment on August 7, 2025 (the "MSJ"). The MSJ was set for hearing on December 23, 2025.

Disposition

The Court orders as follows:

1. The parties advised the Court at the Case Management Conference (CMC) on September 24, 2025 that the matter had resolved and settlement paperwork would be submitted (the "Settlement"). However, it does not appear that any Settlement papers have been filed as yet.
2. In light of the reported Settlement, the MSJ is CONTINUED. The clerk of the Court shall give notice of the continued hearing date.

5. 9:00 AM CASE NUMBER: L25-00239
CASE NAME: JPMORGAN CHASE BANK N.A. VS. BENNY ENGLISH
*HEARING ON MOTION IN RE:
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Plaintiff JPMorgan Chase Bank, N.A. (“Plaintiff”) filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 23, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Benny English (“Defendant”) with a Requests for Admission (Set One). See Declaration of Gregory Parks filed October 6, 2025 as part of Motion to Deem Admissions (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on April 1, 2025 by mail. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated April 1, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before May 6, 2025 (30 days from and after April 1, 2025 was May 1, 2025 and five calendar days thereafter fell on May 6, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court

makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in Attachment 1, Nos. 1 through 8, to RFA No. 1 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached to the RFAs (defined as the “Terms and Conditions”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

6. 9:00 AM CASE NUMBER: L25-01638
CASE NAME: DISCOVER BANK VS. KIMBERLY KNELL
***HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT**
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Defendant Kimberly A Knell (“Defendant”) filed a Motion for Order Vacating and Setting Aside Default and Default Judgment on November 21, 2025 (the “Motion to Set Aside Default”). The Motion to Set Aside Default was set for hearing on December 23, 2025. No opposition to the motion has been filed.

Background

Plaintiff filed a Complaint on February 10, 2025. A default was entered against Defendant on June 13, 2025 (the “Default”). Thereafter, a default judgment was entered on September 25, 2025 (the “Default Judgment”).

Analysis

Defendant’s motion is based upon Code of Civil Procedure section 473(b). See